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In the Supreme Court of the United States

OCTOBER TERM, 1994

METROPOLITAN WASHINGTON AIRPORTS AUTHORITY,
ET AL., PETITIONERS

v.

JOHN W. HECHINGER, ET AL.

ON PETITION FOR A WRIT OF CERTIORARI
TO THE UNITED STATES COURT OF APPEALS
FOR THE DISTRICT OF COLUMBIA CIRCUIT

BRIEF FOR THE UNITED STATES

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QUESTION PRESENTED

Whether 49 U.S.C. App. 2456(f) (Supp. IV 1992), which provides for a Board of Review that consists of members proposed by the Speaker of the House of Representatives and the President *pro tempore* of the Senate and that has power to oversee and postpone actions of the Metropolitan Washington Airports Authority, violates the separation of powers doctrine and this Court's decision in *Metropolitan Washington Airports Authority v. Citizens for Abatement of Aircraft Noise, Inc.*, 501 U.S. 252 (1991).

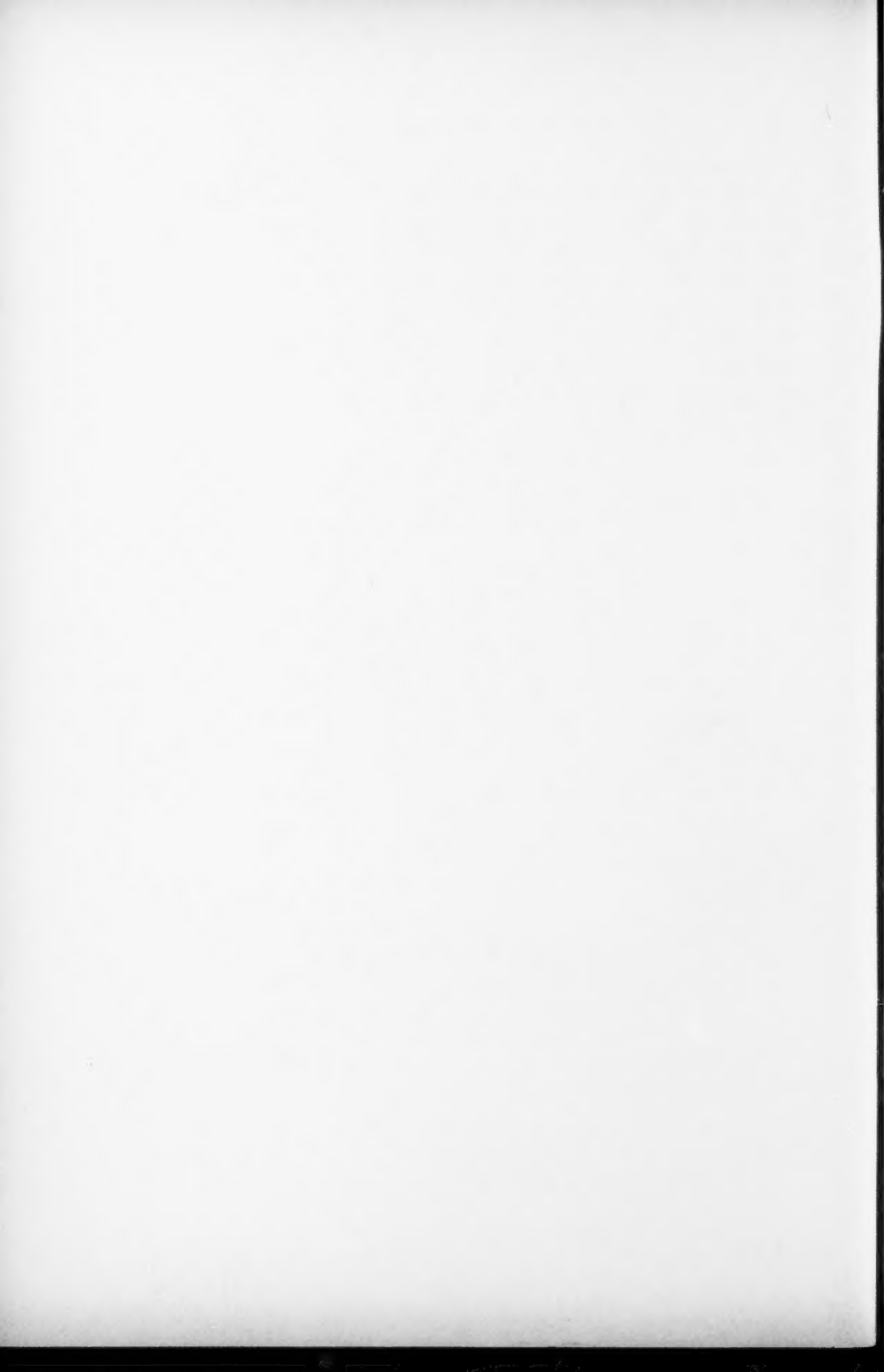


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OPINIONS BELOW

The opinion of the court of appeals (Pet. App. 1a-19a) is reported at 36 F.3d 97. The opinion of the district court (Pet. App. 22a-38a) is reported at 845 F. Supp. 902.

JURISDICTION

The judgment of the court of appeals was entered on September 27, 1994. The petition for a writ of certiorari was filed on November 22, 1994. The jurisdiction of this Court is invoked under 28 U.S.C. 1254(1).

STATEMENT

This case involves the Metropolitan Washington Airports Act of 1986 (Transfer Act), 49 U.S.C. App. 2451 *et seq.*, as amended. In *Metropolitan Washington Airports Authority v. Citizens for Abatement of Aircraft Noise, Inc.*, 501 U.S. 252 (1991) (CAAN), this Court held that the Transfer Act violated constitutional separation of powers principles. In response to this Court's decision, Congress amended the Act in several respects in 1991. The court of appeals has now held that the Act as amended remains unconstitutional.

1. The 1986 Transfer Act provided for the federal government to lease National Airport and Dulles International Airport to the Metropolitan Washington Airports Authority (Authority), an independent regional authority created through a compact between Virginia and the District of Columbia. The Act conditioned the leases on the creation of a nine-member Board of Review. The Act originally provided for the Board to consist of Members of Congress, all but one of whom were to be members of congressional committees responsible for air transportation matters. 49 U.S.C. App. 2456(f)(1) (1988). The Act required the Authority to submit to the Board a number of significant operational decisions, such as the adoption of an annual budget and any change in hours of operation. 49 U.S.C. App. 2456(f)(4)(A) and (B), 2456(g) (1988). If the Board disapproved any of the proposed actions, the Authority was prohibited from carrying it out. 49 U.S.C. App. 2456(f)(4)(D) (1988).

In CAAN, a civic organization and two individuals brought suit against the Authority, contending that the Transfer Act's provisions relating to the Board of Review were unconstitutional. This Court agreed. 501 U.S. at 265-277.

The Court first considered the contention that the Board "neither exercises federal power nor acts as an agent of Congress" (501 U.S. at 265), and hence that the Board's role did not implicate separation of powers principles at all. Based on its review of "the origin and structure of the Board" (*ibid.*), the Court rejected that argument. It observed that the federal government "has a strong and continuing interest in the efficient operation of the airports, which are vital to the smooth conduct of Government business, especially to the work of Congress." *Id.* at 266. Indeed, the decision to create the Board of Review, whose structure and powers Congress mandated in detail, was prompted by Congress's recognition of this federal interest. *Ibid.* Not only did Congress require the creation of the Board as a condition of the airport leases, but it included in the Transfer Act a so-called "drop-dead" clause, under which the Authority would "have no authority to perform any of the actions" subject to Board review if the Board itself were invalidated by a court. 49 U.S.C. App. 2456(h) (1988). Finally, membership on the Board was limited to federal officials, specifically Members of Congress. 501 U.S. at 266-267.

Although the Transfer Act provided that the members of the Board were to serve "in their individual capacities, as representatives of users" of the airports, 49 U.S.C. App. 2456(f)(1) (1988), the Court concluded that the Board nonetheless remained "a congressional agent exercising federal authority." 501 U.S. at 267. The Court noted that the Act did not require Board members to be users of the airports, but instead required them to be members of congressional committees having jurisdiction over transportation issues. *Ibid.* Moreover, Congress "also exercise[d] substantial power over the appointment and removal" of Board members. *Id.* at 268. Although the

Board's members were appointed by the Authority, all appointments were required to come from lists provided by the Speaker of the House of Representatives and the President *pro tempore* of the Senate. 49 U.S.C. App. 2456(f)(1) (1988). "Significantly, appointments *must* be made from the lists, and there is no requirement that the lists contain more recommendations than the number of Board openings." 501 U.S. at 268. If displeased with the performance of members of the Board, moreover, the congressional leadership could remove them from the Board by changing their committee assignments. *Id.* at 269. The Court summarized (*ibid.*):

We thus confront an entity created at the initiative of Congress, the powers of which Congress has delineated, the purpose of which is to protect an acknowledged federal interest, and membership in which is restricted to congressional officials. Such an entity necessarily exercises sufficient federal power as an agent of Congress to mandate separation-of-powers scrutiny.

After concluding that the Board was acting as an agent of Congress, the Court turned to the limitations imposed by separation of powers principles. 501 U.S. at 271-277. The Court identified two "basic and related constraints." *Id.* at 274. First, Congress may not exercise executive or judicial power at all; second, Congress may exercise legislative power only through the procedures specified in Article I. *Ibid.* The Court concluded that the role of the Board of Review necessarily offended one or the other of those constraints. If the power exercised by the Board was executive, "the Constitution does not permit an agent of Congress to exercise it." *Id.* at 276. If, on the other hand, the Board's power was viewed as legislative, "Congress must exercise it in conformity

with the bicameralism and presentment requirements" of Article I. *Ibid.* The Court therefore found it unnecessary to decide whether the Board's role was executive or legislative; in either case, the Court concluded, the Board's power would be "constitutionally impermissible." *Ibid.*

2. In response to this Court's decision in *CAAN*, Congress enacted the Metropolitan Washington Airports Act Amendments of 1991, Pub. L. No. 102-240, Tit. VII, 105 Stat. 2197 (1991 Amendments) (Pet. App. 69a-79a). The 1991 Amendments preserve the Board of Review, and the Authority remains subject to the "drop-dead" provision (see page 3, *supra*) if the Board is invalidated. In several respects, however, the 1991 Amendments altered the provisions of the Transfer Act relating to the Board.

The first change concerns the composition of the Board. The basic process of appointing Board members is unchanged: The Authority still must select members from lists prepared by the Speaker of the House of Representatives and the President *pro tempore* of the Senate, and the lists need not contain more names than the number of vacancies. 49 U.S.C. App. 2456(f)(1) (Supp. IV 1992). However, the 1991 Amendments eliminated the requirement that Board members be Members of Congress, substituting three new membership criteria. First, members must "have experience in aviation matters and in addressing the needs of airport users"; second, they must be "frequent users" of National and Dulles Airports; finally, they must be registered voters of a State other than Maryland, Virginia, or the District of Columbia. 49 U.S.C. App. 2456(f)(2)(C) (Supp. IV 1992). Of the nine members appointed to the Board on the basis of those criteria following the 1991 Amendments, all but one were Members of Congress who served on

committees having jurisdiction over air transportation. Pet. App. 8a, 217a-218a.

The Board continues to oversee major operational decisions by the Authority, but the 1991 Amendments changed the process by which the Board's oversight role is exercised. In place of the veto power struck down in *CAAN*, the 1991 Amendments substituted a two-stage review process. At the first stage, the Authority must submit to the Board the same kinds of proposed actions that were subject to the Board's veto power under the original Act, along with several additional categories of actions added by the 1991 Amendments. See 49 U.S.C. App. 2456(f)(4)(B) (Supp. IV 1992). The Board is given 30 calendar days or ten legislative days, whichever is longer, to make "recommendations" to the Authority regarding proposed actions. 49 U.S.C. App. 2456(f)(4)(C) (Supp. IV 1992).

If the Authority accepts a Board recommendation, or if the Board makes no recommendation, the proposed action may go into effect immediately. However, if the Authority does not adopt the Board's recommendation, the proposed action is subject to a second stage of review: The Authority must submit to Congress a detailed description of the proposed action, the Board's recommendation, and the Authority's response. 49 U.S.C. App. 2456(f)(4)(D) (Supp. IV 1992). Congress is then given 60 legislative days to consider whether to enact a joint resolution of disapproval, and the Authority must defer the proposed action until the end of that period. 49 U.S.C. App. 2456(f)(4)(D)(ii) (Supp. IV 1992). In practice, a period of 60 legislative days lasts at least three months and may extend for as long as six months. Pet. App. 220a.

3. The plaintiffs in *CAAN* again brought suit to challenge the constitutionality of the Transfer Act, as amended. Respondents argued, *inter alia*, that the 1991

Amendments did not cure the constitutional deficiencies identified by this Court in *CAAN*. The district court entered summary judgment in favor of respondents, holding that the amended Transfer Act violates separation of powers principles, and that the Act's procedures for selecting Board members violate the Appointments Clause. Pet. App. 22a-38a.

The court of appeals affirmed on separation of powers grounds and did not reach the other constitutional issues presented by the case. Pet. App. 1a-19a.¹ The court first addressed the question whether, in light of the 1991 Amendments, the Board remains an agent of Congress. *Id.* at 6a-10a. The court noted that "[t]he new Board and its powers continue to be the creation of Congress, the drop-dead provision remains in place, and the federal interest in the efficient operation of the two airports continues unchanged." *Id.* at 7a. The court acknowledged that the 1991 Amendments had eliminated the explicit requirement that the Board consist of Members of Congress, but it concluded that Congress still "intended the Board to serve, and * * * it does serve, as [Congress's] agent." *Id.* at 10a.

The court reasoned that, "as a practical matter, relatively few individuals other than members or alumni of th[e] [congressional transportation] committees will

¹ Pursuant to 28 U.S.C. 2403(a), the United States intervened in the court of appeals to address the constitutionality of the amended Act. In *CAAN*, the United States had argued that the original Act was constitutional on the theory that "the Board of Review exercises state, and not federal, power," U.S. Br. at 12 (No. 90-906), and that the Members of Congress designated to serve "in their individual capacities" had "special and distinct individual concerns that justify that designation," *id.* at 13. In light of this Court's decision in *CAAN*, the United States argued in the court of appeals that the amended Act is unconstitutional.

be able to meet" the membership requirements established by the 1991 Amendments. Pet. App. 8a. The court also found it telling that the time limits for Board action were framed in terms of "legislative days," which "exclu[ded] * * * days on which Representatives and Senators may be expected to be out of town." *Id.* at 9a. Finally, the court noted that Congress retained effective control of the composition of the Board through its ability to nominate members and to confine the Authority to the lists of nominees submitted by the Speaker of the House of Representatives and the President *pro tempore* of the Senate. *Id.* at 9a-10a.

After concluding that the Board remains an agent of Congress, the court of appeals turned to the question whether the Board exercises federal power. Pet. App. 10a-19a. Petitioners argued that the elimination of the Board's veto power effectively confined the Board to a purely advisory role of the sort in which Congress or its agents may engage without offending separation of powers principles. *Id.* at 10a. The court of appeals concluded, however, that, under the 1991 Amendments, the Board retains "the power to coerce the Airports Authority to comply with any recommendation." *Id.* at 17a (internal quotation marks omitted).

Although the court of appeals identified several features of the 1991 Amendments in support of this conclusion, it emphasized that "[w]hat tips the balance * * * is the Board's power to delay and perhaps overturn critical decisions [of the Authority] by requiring their referral to Congress." Pet. App. 17a. The court pointed out that the protracted statutory waiting period would pose potentially intolerable costs on the Authority if it refused to accede to the Board's recommendations. *Id.* at 15a, 17a. The impact of delay is especially acute, the court noted, because many of the decisions that are

subject to review by the Board are highly time-sensitive, so that delay "can result in millions of dollars of additional costs and can adversely affect the public safety." *Id.* at 15a. As a result, "[t]he mere existence of this power to delay provides the [Authority] with an enormous incentive to avoid confrontations by tailoring their decisions to suit the Board's pleasure." *Id.* at 18a.

Petitioners argued that the review mechanisms in the 1991 Amendments, including congressional review of the Authority's decisions not to adopt Board recommendations, are simply a variation on conventional "report-and-wait" statutes, under which agencies are required to report proposed actions to Congress and defer implementation pending congressional consideration of a joint resolution of disapproval. Pet. App. 12a. The court of appeals pointed out, however, that conventional report-and-wait statutes provide for automatic referral of specified agency decisions to Congress, and thus have a neutral effect on agency decisionmaking. *Ibid.* In contrast, the 1991 Amendments leave an agent of Congress with discretion whether to trigger the congressional review process, and that discretion provides an avenue for congressional leverage that is not provided by ordinary report-and-wait statutes. *Ibid.*

DISCUSSION

The court of appeals correctly held that the Transfer Act, as amended, violates constitutional separation of powers principles. We nevertheless believe that the petition for a writ of certiorari should be granted. Although the court of appeals' holding follows logically from this Court's decision in *CAAN*, we cannot say that the changes effected by the 1991 Amendments are so clearly without constitutional significance as to rebut the weighty presumption that a court of appeals' decision

invalidating an Act of Congress should be reviewed by this Court.

1. The threshold issue, here as in *CAAN*, is whether the Board of Review "exercises * * * federal power as an agent of Congress," 501 U.S. at 269, thereby subjecting it to the limitations imposed on Congress by separation of powers principles and Article I. Petitioners do not appear to dispute that any power exercised by the Board is that of the federal government.² Instead, they challenge the court of appeals' conclusion that the Board acts as an agent of Congress. Pet. 21-28. Petitioners' arguments on this score are without merit.

Petitioners place primary reliance on the fact that the Transfer Act, as amended, no longer limits Board membership to Members of Congress. Pet. 22-23. But as the court of appeals pointed out, the new membership criteria have proved effective in preserving dominant congressional representation on the Board. However "neutral" (Pet. 23) the criteria may appear in the abstract, the court of appeals was correct in concluding that the statutory qualifications will be met by "relatively few individuals other than members or alumni" of congressional air transportation committees. Pet. App. 8a. Moreover, Congress retains control over the actual composition of the Board by requiring the Authority to select Board members from lists prepared by the Speaker of the House of Representatives and the President *pro tempore* of the Senate. Viewed in combi-

² Petitioners do argue that the Board lacks any "power" at all for separation of powers purposes. Pet. 14-21. We address that argument below. See pages 13-17, *infra*. Petitioners do not appear to dispute that, if the Board exercises power in a constitutionally significant sense, the power is that of the federal government.

nation, the membership criteria and the selection process reflect a continuing effort by Congress to use the Board as a vehicle for congressional influence on the Authority's decisions.

Petitioners argue that Congress is free to establish an appointment process in which appointments are made from lists prepared by Congress. Pet. 24-25. That argument is difficult to square with *INS v. Chadha*, 462 U.S. 919 (1983). There, this Court held that congressional "action that ha[s] the purpose and effect of altering the legal rights, duties, and relations of persons * * * outside the Legislative Branch," *id.* at 952, can be taken (subject to the exceptions enumerated in the Constitution) only through the passage of a law, see *id.* at 956-957. Congress's formulation and transmittal of lists of acceptable Board members appears to be such an action, because the Authority (which is outside the Legislative Branch) is barred from selecting as a Board member any person not on the lists.

The court of appeals did not, however, rely solely on the requirement that appointees be drawn from congressional lists to determine the Board's membership is unconstitutional. It simply held that Congress's insistence on controlling the membership of the Board through the use of lists, when combined with the indicia present in *CAAN* and membership criteria that are tilted in favor of Members of Congress, indicated that Congress continues to view the Board as its agent.

Finally, petitioners assert that "the dispositive factor" in characterizing the relationship between the Board and Congress is the presence or absence of the removal power, and that the 1991 Amendments therefore break the link between the Board and Congress by eliminating Congress's removal authority. Pet. 26-27. But there is no reason in law or logic why this should be

so. To be sure, removal power may be a significant tool for ensuring that an agent carries out his principal's wishes.³ But it is hardly the only tool for doing so. Here, the membership criteria and the selection process combine to make it likely that, even in the absence of a formal removal power, the Board will reflect Congress's underlying interests and wishes.⁴

In challenging the court of appeals' conclusion about the status and role of the Board, petitioners assess each component of the statutory scheme in isolation, trying to show that no single component is sufficient to establish the Board as an agent of Congress. The teaching of *CAAN*, however, is that an assessment of the Board's status and role also requires attention to the cumulative effect of the statutory scheme. See 501 U.S. at 266 ("[s]everal factors combine" to subject Board to separation of powers review). When the components of the amended Transfer Act are viewed cumulatively, rather

³ At the same time, the existence of removal power may be more theoretical than real. The original Transfer Act did not provide a direct mechanism for Congress to remove Board members. Instead, Congress could accomplish that result by stripping members of the committee assignments required by the Act as a condition for Board membership. Although the Act therefore theoretically vested Congress with the power of removal (*CAAN*, 501 U.S. at 269), removing Board members by unilaterally changing committee assignments was, at best, an extremely unwieldy method of exercising control. The elimination of this mechanism by the 1991 Amendments is unlikely to alter the practical relationship between Congress and the Board.

⁴ Petitioners point to the line of cases from *Myers v. United States*, 272 U.S. 52 (1926), to *Bowsher v. Synar*, 478 U.S. 714 (1986), that addresses the scope of the President's power under Article II to remove executive officers. Pet. 26-27. But those decisions do not hold, as petitioners suggest, that the presence or absence of removal power determines the status of an official.

than in isolation, the conclusion that Congress is continuing to employ the Board as its agent is apparent.

2. CAAN holds that Congress may not exercise executive power over the Authority at all, and may not exercise legislative power over the Authority except through the lawmaking procedures mandated by Article I. 501 U.S. at 276. Petitioners argue that, even if the Board is an agent of Congress, the elimination of the Board's veto power renders those constitutional restrictions inapplicable. Pet. 14-21. Petitioners argue that the 1991 Amendments transformed the Board into a purely advisory body, and that separation of powers principles impose no limitations on Congress's ability to offer advice, either directly or through an agent, to the Authority.

The court of appeals correctly rejected that argument. See Pet. App. 10a-19a. By giving the Board discretionary power to trigger congressional review of the Authority's major decisions, and by requiring the Authority to defer action for as long as six calendar months (see page 6, *supra*) if it is unwilling to abide by the Board's wishes, Congress effectively gave the Board the power to control the Authority's principal operational decisions. Given the time-sensitive nature of matters like the adoption of an annual budget (49 U.S.C. App. 2456(f)(4)(B)(i) (Supp. IV 1992)) or the authorization of bonds (49 U.S.C. App. 2456(f)(4)(B)(ii) (Supp. IV 1992)), the Board's power of delay effectively compels the Authority to accede to the Board's wishes.

Petitioners argue at length that the Constitution permits Congress to engage in "advice" and "influence" without resorting to the lawmaking procedures of Article I (Pet. 14-16), and that the court of appeals "has adopted the position that an agent of Congress may not play even an informational or advisory role in the

decisionmaking process of an executive body" (Pet. 21). But the court of appeals held nothing of the sort. To the contrary, the court expressly acknowledged and accepted "the difference between [legislative] persuasion and coercion." Pet. App. 16a. It concluded that the amended Transfer Act crosses the line from persuasion to coercion, by allowing an agent of Congress to impose potentially extended and costly delays on major decisions of the Authority if the agent disagrees with those decisions. *Id.* at 17a (amended Act "gives the Board of Review the power to coerce the Airports Authority to comply with any recommendation") (internal quotation marks omitted).

Petitioners also assert that the two-stage review mechanism created by the 1991 Amendments is constitutionally indistinguishable from "report-and-wait" statutes, whose propriety is well established. Pet. 15-16; see, e.g., *Alaska Airlines, Inc. v. Brock*, 480 U.S. 678, 689-690 & n.12 (1987); *Chadha*, 462 U.S. at 935 n.9. That contention is without merit. Under "report-and-wait" statutes, the category of agency actions whose implementation is delayed is defined by the statute itself. Such statutes are consistent with the principle that congressional actions "altering the legal rights, duties, and relations of persons * * * outside the Legislative Branch," *Chadha*, 462 U.S. at 952, must be effected through the passage of legislation. Under the amended Transfer Act, by contrast, an agent of Congress determines which of the Authority's actions will and will not be subject to delay, thus permitting Congress to alter legal rights and duties without complying with the bicameralism and presentment requirements of Article I.

As the court of appeals pointed out (Pet. App. 12a), moreover, this distinction has significant practical

effects. Report-and-wait statutes do not affect the outcome of administrative decisionmaking, because they require specified categories of administrative decisions to be presented for congressional review automatically, without regard to the specific outcome of those decisions. But the amended Transfer Act, by giving an agent of Congress discretion to trigger congressional review on a case-by-case basis, reserves the congressional review process for decisions with which the Board disagrees. If the Authority yields to the Board's views, it may act immediately; if it resists, it must wait a potentially prohibitive length of time. The Act thus gives the Board, as Congress's agent, a form of control over the actual content of the Authority's decisions that is qualitatively different from that created by report-and-wait statutes.

Finally, petitioners argue (Pet. 17-20) that the decision of the court of appeals conflicts with *Ameron, Inc. v. United States Army Corps of Engineers*, 809 F.2d 979 (3d Cir. 1986), cert. dismissed on motion of parties, 488 U.S. 918 (1988), and *Lear Siegler, Inc. v. Lehman*, 842 F.2d 1102 (1988), withdrawn in part on other grounds, 893 F.2d 205 (9th Cir. 1989) (en banc). Under the statute upheld in *Ameron* and *Lear Siegler*—the Competition in Contracting Act of 1984 (CICA), 31 U.S.C. 3551 *et seq.*—if a disappointed government contract bidder files a protest with the Comptroller General, the award of the protested contract is automatically stayed pending an investigation by the Comptroller General. The Comptroller General can take up to 90 days to complete his investigation, but he can lift the stay earlier if he finds the protest frivolous or facially invalid. The CICA expressly allows the procuring agency to override the stay, regardless of the status of the Comptroller General's investigation, if the agency determines that

“urgent and compelling circumstances” require a prompt award. See Pet. App. 13a (describing the CICA).

As explained in the briefs for the petitioner in this Court in *Ameron*, we disagree with the holdings in *Ameron* and *Lear Siegler* that the challenged provisions of the CICA are constitutional, since they give an agent of Congress (the Comptroller General) the power to control the timing of a contract entered into by an Executive agency. Moreover, as the court of appeals explained (Pet App. 13a-15a), the statutory provisions at issue here are distinguishable because the amended Transfer Act vests the Board with significantly greater control over the Authority than the CICA gives the Comptroller General over procuring agencies. See Pet. App. 14a-15a. First, the Board is not dependent on requests from non-governmental third parties to trigger its review powers; it may review on its own initiative any of the decisions specified in the amended Transfer Act. Second, the amended Transfer Act does not permit the Authority to override the Board by pretermittting the review process. If the Authority disagrees with the Board’s recommendations, it must wait until the lengthy process of congressional review has run its course, even if (as often will be the case) the resulting delay will effectively block the proposed action.

Petitioners attempt to minimize the differences between the two statutory schemes (Pet. 20), but their efforts are unavailing. It is hardly “irrelevant” to the scope of the Board’s authority (*ibid.*) that the Board is free to act on its own initiative rather than being dependent on a request from a private party. And while the amended Transfer Act unquestionably does “specify precisely the areas subject to review and recommendation” (*ibid.*), the decisions that it specifies are the most important ones that the Authority can make, and

they are highly time-sensitive as well. Thus, the fact that Congress has "limited" the Board's oversight to matters such as annual budgets, bonding decisions, and hours of airport operations hardly provides the kind of safety valve contained in the stay override provision of the CICA.

3. Although we agree with the court of appeals that the role of the Board of Review under the amended Transfer Act is unconstitutional, we believe that the petition for a writ of certiorari should be granted. Invalidating an Act of Congress on constitutional grounds is "the gravest and most delicate duty that [a court] is called on to perform," *Blodgett v. Holden*, 275 U.S. 142, 147-148 (1927) (Holmes, J.), and when a lower court finds it necessary to perform that duty, review by this Court is ordinarily called for. Although we believe that the 1991 Amendments to the Transfer Act fail to cure the defects identified in *CAAN* and to render the Act constitutional, we do not believe that the inadequacy of the Amendments is so clearly beyond dispute as to eliminate the need for this Court's review.

CONCLUSION

The petition for a writ of certiorari should be granted.

Respectfully submitted.

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